

		that would require denial of the motion. (<i>Civ. Proc. Code</i> § 437c(c) and § 437c(p)(1). As Defendant failed to oppose the Motion, Defendant failed to meet the transferred burden under the code. The Motion is GRANTED. <i>Plaintiff to give notice.</i>
11.	Carlton v. Ford Motor Company 24-1445099	(Continued)
12.	Tykhonina v. In-N-Out Burgers, Inc. 25-1470899	The motion for summary judgment, or in the alternative, summary adjudication, filed by defendant In-N-Out Burgers (Defendant) directed to the complaint of plaintiff Daria Tykhonina (Plaintiff) is DENIED. On a motion for summary judgment, a defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action cannot be established, or that there is a complete defense thereto. (<i>Code Civ. Proc.</i>, § 437c(p)(2).) A defendant does not satisfy its burden of proof by producing evidence that does not exclude the possibility that plaintiffs may possess or may reasonably obtain evidence sufficient to establish their claim. (<i>Weber v. John Crane, Inc.</i> (2006) 143 Cal.App.4th 1433, 1441-1442.) "There is no obligation on the opposing party ... to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing <i>every element</i> ... necessary to sustain a judgment in his favor." (<i>Consumer Cause, Inc. v. SmileCare</i> (2001) 91 Cal.App.4th 454, 468 (emphasis in original; internal quotes omitted).) Defendant failed to address the full scope of duties and breaches alleged in the Complaint. (See <i>Nieto v. Blue Shield of Calif. Life & Health Ins. Co.</i> (2010) 181 Cal.App.4th 60, 74—"the pleadings determine the scope of relevant issues on a summary judgment motion".) Plaintiff alleges Defendant owed a duty to exercise reasonable care "with respect to the preparation, handling, and service of hot beverages so as to prevent them from spilling onto and injuring customers such as Plaintiff." (Compl., ¶ 7.) Plaintiff further alleges Defendant breached their duty of care by failing to properly secure the lid on the hot drink, "and otherwise negligently preparing, handling, and serving the drink[], so as to cause a hot drink to spill and cause catastrophic burns to Plaintiff, a customer." (Compl., ¶ 9.) Plaintiff also alleges the failure to properly secure the lid on the hot drink and the failure to appropriately hand the hot drink to Plaintiff created a foreseeable danger that the hot drink would spill upon handing it to a customer such as Plaintiff. (Compl., ¶ 10.) Defendant's motion focuses primarily on its alleged liability for failing to secure the lid on the hot drink. Defendant, however, failed to adequately

		and fully address its potential liability for “negligently preparing, handling, and serving the drink” to Plaintiff, including failing to appropriately hand the hot drink to Plaintiff. Defendant relies solely on its employee’s declaration and surveillance footage of the incident. The cursory employee declaration states only that its employee secured the lid on the coffee cup prior to handing it to Plaintiff and the cup was not hot. This evidence does not address the full scope of the alleged breaches as set forth above. Moreover, it is not clearly shown from the surveillance footage provided by Defendant that no act of Defendant caused or contributed to the spill. Defendant’s employee states that “[p]rior to the spill, Plaintiff had sole and full control of the coffee cup.” However, no facts are stated showing the employee observed Plaintiff’s grip on the cup or otherwise establishing how he knew Plaintiff had full control of the cup. Defendant’s evidence does not exclude the possibility that Plaintiff may possess or may reasonably obtain evidence sufficient to establish her claim. Defendant’s evidence is insufficient to establish, as a matter of law, that Defendant did not breach any duty or that Plaintiff’s conduct was the sole proximate cause of her injuries. As such, Defendant failed to meet its initial burden of demonstrating the nonexistence of a triable issue of material fact. Accordingly, the motion is DENIED. The Court declines to rule on the parties’ evidentiary objections as not material to the disposition of the motion. (<i>Code Civ. Proc.</i>, § 437c(q).) <i>Plaintiff shall give notice of this ruling.</i>
13.	Moreno v. City of Santa Ana 24-1372127	Before the Court are two motions for terminating, issue, evidentiary and/or monetary sanctions filed by plaintiff Manuel Moreno (Plaintiff) against defendant City of Santa (the City). For the reasons set forth below, both motions are DENIED. “[T]he trial court has wide discretion to order discovery and broad powers to enforce those orders.” (<i>Hartbrodt v. Burke</i> (1996) 42 Cal.App.4th 168, 175; <i>Vallbona v. Springer</i> (1996) 43 Cal.App.4th 1525, 1545.) This includes the “broad discretion to manage discovery [citation], including selecting an appropriate penalty for a party’s refusal to obey a discovery order” or other misuse of the discovery process, so long as the sanction is appropriate to the dereliction and does not exceed what is required to protect the interests of the party entitled to but denied discovery. (<i>Padron v. Watchtower Bible & Tract Society of New York, Inc.</i> (2017) 16 Cal.App.5th 1246, 1262; <i>Lopez v. Watchtower Bible & Tract Society of New York</i> (2016) 246 Cal.App.4th 566, 604 (Lopez).) Motion No. 1 (ROA 244)